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February 19, 2025

AS AMENDED

SENATE BILL NO. 945

By: Guthrie

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[ crimes and punishments - animal cruelty -
misdemeanor offense - felony offense - penalties -
effective date ]
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1685, is amended to read as follows:

Section 1685. A. Any person who shall knowingly deprive any animal in subjugation or captivity, whether wild or tame, and whether belonging to the person or to another, of necessary food, drink, shelter, or veterinary care; or who shall cause, procure, or permit any such animal to be deprived by another shall be guilty, upon conviction, of a misdemeanor punishable by imprisonment in the county jail for a term not to exceed one (1) year, by a fine not more than One Thousand Dollars (\$1,000.00), or by both such imprisonment and fine. Any animal so maltreated shall be considered a neglected animal.

B. Any person who shall ~~willfully or maliciously torture~~
knowingly, destroy, ~~or~~ kill, ~~or~~ cruelly beat or injure, maim, or

1 mutilate any animal in subjugation or captivity, whether wild or
2 tame, and whether belonging to the person or to another, ~~or deprive~~
3 ~~any such animal of necessary food, drink, shelter, or veterinary~~
4 ~~care to prevent suffering~~; or who shall cause, procure, or permit
5 any such animal to be so tortured, destroyed, ~~or~~ killed, or cruelly
6 beaten or injured, maimed, or mutilated, ~~or deprived of necessary~~
7 ~~food, drink, shelter, or veterinary care to prevent suffering~~; or
8 who shall willfully set on foot, instigate, engage in, or in any way
9 further any act of cruelty to any animal, or any act tending to
10 produce such cruelty, shall be guilty, upon conviction, of a felony
11 ~~and shall be punished~~ punishable by imprisonment in the ~~State~~
12 ~~Penitentiary~~ custody of the Department of Corrections for a term not
13 ~~exceeding~~ to exceed five (5) years, or by imprisonment in the county
14 jail for a term not to exceed ~~exceeding~~ one (1) year, ~~or~~ by a fine
15 not ~~exceeding~~ more than Five Thousand Dollars (\$5,000.00), or by
16 both such imprisonment and fine. Any animal so maltreated or abused
17 shall be considered an abused ~~or neglected~~ animal.

18 C. Any person providing commercial services for animals,
19 including, but not limited to, veterinary care, grooming services,
20 or boarding, who shall willfully or maliciously destroy, kill, beat,
21 injure, maim, or mutilate an animal or pet in his or her care,
22 shall, upon conviction, be guilty of a felony punishable by
23 imprisonment in the Department of Corrections for a term not to
24

1 exceed ten (10) years, a fine not more than Seven Thousand Dollars
2 (\$7,000.00), or by both such imprisonment and fine.

3 SECTION 2. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
5 February 19, 2025 - DO PASS AS AMENDED
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